Pine Valley Local Administrative District ("PVLAD")

Meeting Minutes – PENDING

Pine Valley Fire Station, 680 East Main Street, Conference Room

September 9, 2026, 6:00 P.M.

Board Members: Frank Davie, Chairman
Tom Nielsen, Vice Chairman
Emily Neilson
Brad Esposito, excused
Cortney Snow

PVLAD Assistants: Rick Peetz, Clerk
Teri Forbes, Treasurer

Fire Chief Robert Hardy

Others: Gene Phillips
Bob Dalley
Allen Cannon
Kendall Sullivan
Duane Krohn
Audrey Krohn
Bob Bailey (arrived 6:35 PM)
Steve Shakespeare
Brian Davis (via Zoom)
Rob Nodine (via Zoom)

1. Welcome, Prayer & Pledge of Allegiance –Tom Nielsen and Emily Neilson.

Chair Frank Davie called the meeting to order at 6:01 PM.

The prayer was offered by Tom Nielsen. Emily Neilson led the Pledge of Allegiance.

Chair Davie reported on a recent training offered by the Office of the State Auditor. *The Best Practice Handbook - A Practical Guide to Excellence for Utah Government* was distributed to those in attendance and had been found to be very informative.

2. Pine Valley Overlay Zone Business – Emily Nielson.

A. Rider Development Request on Little Pony Lane – Jeremy Wood, Jensen + Sons Consulting. (WITHDRAWN BY APPLICANT)

There was no Overlay Zone Business. The above matter was withdrawn by the applicant.

3. Meeting Minutes.

A. Approval of the August 12, 2026, PVLAD Meeting Minutes.

Emily Neilson moved to recommend APPROVAL of the August 12, 2026, PLVAD Meeting minutes. Tom Nielson seconded the motion. The motion passed with the unanimous consent of the Board.

4. Board Member Reports.

A. Pine Valley Activities – Frank Davie.

Chair Davie commented on the good community activities that take place in Pine Valley. Emily Neilson reported that the Activities Committee is planning a Barn Dance for Saturday, September 12th at her home at 5:00 p.m. Geezer will be performing.

Emily has been working on the website with Joseph Hunt, and the intent is to have a button where users can get information on upcoming activities.

B. Traffic Report – Tom Nielsen.

Tom Nielsen reported that a sign that was repaired about one month ago by Rick Peetz is down again. Data was obtained through August 26. Traveling west from the campground near the Brandin' Iron, there were 3,079 fewer vehicles this year. Most of the speeds recorded are within reasonable limits.

The sign near the Neilson's home malfunctioned, so there is no data other than 8,750 cars recorded traveling eastbound. Near the Sullivan's home at 416 West Main Street, there was an increase of 390 cars. In 2025, there were 9,214 cars recorded. This year, there were 9,604. Most traveled at or below the speed limit.

Near Rachel's sign traveling eastbound from Lloyd Canyon, there were 3,324 fewer cars in 2026 compared to 2025. In 2025, there were 6,700 cars, and in

2026 there were just over 3,400. Most travel close to the speed limit.

Tom reported on noise from trucks hauling large boulders. Around 6:00 a.m., the first load can be heard and felt from his home. Chair Davie stated that the work is being done directly behind his home, but he was pleased with the mitigation work done by the County. The rock work will extend 2,300 feet with a debris basin on top. It will be similar to the debris basin in Forsyth Canyon. The purpose is to collect debris.

Emily asked if the Sheriff patrolled the valley over Labor Day weekend. Tom was not sure but would check.

Chair Davie thanked Rick and Lynn Peetz for their efforts in posting the flags. Rick stated that the weekend was difficult due to heavy winds when the flags were put up on Friday. On Saturday, they were taken down, with half having been torn. The intent was to prevent further damage to the flags. Chair Davie commented that people love and appreciate the flags being posted in the valley.

5. Community Watch – Tom Nielsen & Gene Phillips.

Gene Phillips reported that there was fair participation at a recent Call to Action event. Each of the Block Captains also sent out notices asking residents to update their information. Another meeting is scheduled for October as well as a radio training. Over the years, Gene has done extensive training and acknowledged that the Community Watch program has been successful. There were previously 115 families participating, but a few have moved away.

6. Clerk Report and Treasurer's Reports (August) – Rick Peetz and Teri Forbes.

Rick Peetz reported that the only transactions this month involved $98.93 in interest and payment for a crime policy. The crime policy was previously a bond for the Treasurer and covers anyone in the organization.

Teri Forbes balanced the bank account and reported that it was in order.

Emily Neilson moved to APPROVE the Clerk and Treasurer's Reports. Cortney Snow seconded the motion. The motion passed with the unanimous consent of the Board.

7. Board Quarterly Bank Reconciliation Report – Cortney Snow.

Cortney stated that the Reconciliation Report was postponed from the

previous month as he was not present at the meeting. He reported that the Bank Reconciliation was performed and the financial statements match the bank statement. A report on the second quarter will be given at the next meeting.

Emily Neilson moved to APPROVE the 1st Quarter Bank Reconciliation Report. Tom Nielsen seconded the motion. The motion passed with the unanimous consent of the Board.

8. Report on Contact with County Code Enforcement Officer, Emerson Rivera, on Unlicensed Airbnbs in the Valley – Chair Davie.

Chair Davie received an email back from Washington County Zoning and Code Compliance Specialist, Emerson Rivera, regarding short-term rentals. A list was provided of all six active short-term rental licenses in Pine Valley. Mr. Rivera asked to be made aware of those that are not on the list. Rick stated that he does assessments each year and has identified 13 short-term rentals. He offered to provide that information to Chair Davie, who will report back to the County.

Emily stated that as of June 2025, there were seven short-term rentals that were properly licensed. Rick was aware of 13, which are advertised. He bills each $495 per year for their fire assessment. The hope was that those that are operating without a license will come into compliance. Kendall Sullivan commented that numerous other fees are involved for the owners of licensed short-term rentals.

9. Future Budget Review – Rick Peetz.

Rick presented a calendar of events that need to take place based on a recent meeting sponsored by the State Auditor. At the October 14 meeting, he will review the Board Members' thoughts for the 2027 budget. At the conclusion of that meeting, he will prepare the Tentative Budget based on the Board's discussions. On November 4th, a copy fo the Proposed Budget must be posted on the Utah Public Notice website and outside of the post office. At the November 11 meeting, the board will review, change, and approve a Tentative Budget. They will then set the final budget hearing date for December 9. On December 2, Rick will post the final budget. Because the budget will not yet have been approved, it will have to be properly posted and advertised in *The Spectrum.*

On December 9, the Board will hold a public meeting to adopt the final budget. The following week, Rick will have it finalized and posted with the State

Auditor. It was noted that the matter must be properly noticed as a public hearing at each meeting.

10. Amend Board Member Requirements and Meeting Guidelines.

Emily reminded the Board that the Policies and Procedures is a living document. The proposed changes were highlighted in green.

Section 2 A was changed to state:

2. Guiding Principles

A. The public has the right to participate in discussions at the appropriate time, when directed by the Chair, ***as described in the Public Comments section***.

Public Comments

Verbal and written public comments are welcome at all ***Public Hearings. Written comments must be received within 14 days of the Public Hearing***. For ***Public Meetings,*** verbal public comments ***will*** be allowed and limited at the discretion of the Chair. Total time for comments will not exceed twenty (20) minutes, and each individual may not exceed three minutes. These times may be extended, but only upon a majority vote on the Board for that specific meeting.

Emily stressed that the purpose of meetings is to allow for verbal discussion at the appropriate time. After receiving guidance from the Auditor's Office, it was determined that the reason for not allowing written comments is that the purpose of the meeting is to have discussion. Public hearings are different and written comments are allowed the night of the meeting and up to 14 days afterward.

Tom Nielsen moved to APPROVE the proposed changes to the Board Member Requirements and Meeting Guidelines contained in the Policies and Procedures document. Cortney Snow seconded the motion. The motion passed with the unanimous consent of the Board.

11. Amend Public Comments Agenda Item.

Emily referenced the last page of the packet and indicated that based on the changes just made, it is necessary to change the wording of agenda item number 13. She reviewed the current verbiage and proposed that it be changed to comprise two paragraphs with one for public meetings and one for

public hearings. The proposed verbiage was as follows:

> **<u>Public Comment and Public Meetings</u> – Members of the public may verbally address the board regarding matters within the jurisdiction of the Pine Valley Local Administration District after being recognized by the presiding Chair. Members of the public may participate remotely by notifying the moderator they wish to speak. Comments are limited to two minutes per speaker. The board may receive and consider comments but will not take final action on new matters unless properly noticed on the subsequent agenda.**
>
> **<u>Public Comment and Public Hearings</u> – Members of the public may submit verbal (limited to two minutes) or written comments addressing the item being considered during the public hearing. Written comments must be received within 14 days of the public hearing. Members of the public participating remotely may participate by notifying the moderator they wish to speak or submitting a written comment following the meeting. The board does not have access during the meeting to comments made through the electronic participation platform.**

Emily reviewed the proposed wording with the State Auditor's Office who indicated that there is some discretion in terms of public hearings and whether to limit them. She assumed that in the spirit of the board being as inclusive as possible, they do not want to impose a limit. The public comment at public meetings are open floor. For that reason, comments must be made verbally.

The difference between public hearings and public meetings was provided. Emily explained that a public hearing is a separate meeting and can only be held after 6:00 p.m. Tonight, it was combined with the regular meeting and, as a result, the public meeting was closed and the public hearing opened. They then closed the public hearing and reopened the public meeting. For the convenience of those in attendance, they are done at the same time. She explained that public hearings are mostly budget-related, but can be held for other specific matters as well.

Cortney Snow moved to ACCEPT the proposed wording for public comments as presented. Tom Nielsen seconded the motion. The motion passed with the unanimous consent of the Board.

Emily offered to provide a simplified version of the verbiage to the moderator

going forward to ensure that it is provided in the electronic platform.

12. Commercial Business Review – Chair Davie.

Chair Davie reported that the above matter was brought to his attention by a citizen. He read through some of the guidelines in the Overlay Zone pertaining to commercial businesses.

He stated that Sweet and Salty is a new business in the valley that has been well received but may be the start of a commercial business. He has not yet spoken to the owners. Reference was made to Neighborhood Commercial Standards, which require businesses to meet a fundamental need, be an essential service to the community, promote the safety of residents, be within a single-story structure, and be community-focused. Neighborhood commercial uses include country stores, financial services, offices, professional, personal care, personal instruction, religious facilities, and restaurants. The use must have a rural or historical architectural style.

Emily reported that Emerson Rivera, who is the Code Enforcement Officer for the County, has reviewed the business, and it was relayed secondhand to her that he had no concerns.

Emily explained that an applicant must comply with the Overlay Zone and also obtain a Business License from the County. Existing businesses in the valley were identified. The question was whether the new business is legal with the County. Sweet and Salty is located on the Wells property at the end of their driveway. There are two other similar businesses operating in the valley, with one located on Sage Road.

Chair Davie offered to speak with Mr. Rivera personally and report back at the next meeting.
Emily explained that there are two levels of compliance consisting of Overlay and County regulations. The existing businesses are in compliance with the Overlay Zone; however, there was uncertainty regarding County compliance.

For someone operating a home-based business dealing with food, the County has allowances for them to operate in residential areas under certain conditions. Emily pointed out that some businesses can operate on property that is zoned residential.

Cortney was concerned that there could be confusion if someone wants to operate a home-based business that is deemed permissible in the Overlay Zone but may not be allowed by the County. He suggested that further guidance be obtained. Emily referenced the Utah Cottage Food Law that is

governed by the State. Requirements include obtaining a valid Food Handler's Permit and completing an inspection review and registration.

Chair Davie acknowledged that he operates a woodworking shop from his home but has never obtained a license. His understanding was that unless he earns a certain amount, the use does not have to be licensed. His wife, Maxine, also does pottery work from their home. Chair Davie agreed to get clarification from Mr. Rivera.

Tom provided Chair Davie with links to the Washington County Code regarding food-related businesses and his woodworking shop. He suggested that information be reviewed before speaking with Mr. Rivera. The issue is with minor and major home occupations.

13. Citizen Requests. Any person wishing to bring an item not otherwise on the agenda is to bring it to the attention of the Board Chairman, Frank Davie, and the additional members of the Board by raising their hand and giving their name for the record. The Chair or Board will take no action at this time. All items will be referred to the Board for follow-up and report.

Duane Krohn had nothing to report on the dump, as he had been on vacation.

Fire Chief, Robert Hardy, reported that there was a dumpster fire drill at the dump last week, and there was concern about tree branches encroaching into the area. In the event of a dumpster fire, it could spread to those trees. He spoke with TJ Green from the US Forest Service earlier in the day, who confirmed that the Forest Service owns all of that property. The intent was to get permission from Joe Rechsteiner to clean up around those trees. Cortney suggested that they extend the clean-up area to 60 feet.

14. Other Business.

There was no other business.

15. Adjournment.

Emily Neilson moved to ADJOURN. Tom Nielsen seconded the motion. The motion passed with the unanimous consent of the Board.

The meeting adjourned at 6:55 PM.

The next PVLAD meeting is scheduled for October 14, 2026.